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Tentative Ruling

Re: **Ortiz v. Aguilar et al.**
Superior Court Case No. 23CECG00742

Hearing Date: September 1, 2026 (Dept. 502)

Motion: By Defendant Kiavi Funding, Inc., to Dismiss the First Amended Complaint as to Kiavi Funding, Inc.

Tentative Ruling:

To grant and dismiss the first amended complaint with prejudice as to defendant Kiavi Funding, Inc. Defendant Kiavi Funding, Inc., shall submit to this court, within seven days of service of the minute order, a proposed judgment dismissing the action against them. (Code Civ. Proc., § 581, subd. (f).)

If oral argument is timely requested, it will be entertained on Thursday, September 3, 2026, at 3:30 p.m. in Department 502.

Explanation:

Defendant Kiavi Funding, Inc. ("Defendant") moves to dismiss the case against them brought by plaintiffs Frank Aguilar and Louisa Ortiz ("Plaintiffs") under Code of Civil Procedure section 581, subdivision (f)(2).

Code of Civil Procedure section 581, subdivision (f) states in pertinent part, "The court may dismiss the complaint as to that defendant when...(2)... after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal."

On January 29, 2026, Defendant's demurrer to Plaintiffs' first amended complaint was sustained with ten days leave to amend. Plaintiffs have not filed a second amended complaint. Accordingly, Defendant's motion to dismiss is granted and the case against Defendant dismissed with prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-30-26.
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: **Rodriguez v. Harris Ranch Beef Company**
Superior Court Case No. 25CECG05591

Hearing Date: September 1, 2026 (Dept. 502)

Motions: by Defendant and Cross-Complainant Harris Ranch Beef Company Compelling Plaintiff and Cross-Defendant Luis Rodriguez's Responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents; and for Monetary Sanctions

Tentative Ruling:

To continue the hearing to Wednesday, September 30, 2026, at 3:30 p.m. in Department 502, and to require the moving party to pay \$60 for motion fees to the clerk (in addition to the \$120 for motion fees already paid) for the correct total motion fee of \$180 (3 motions x \$60 each). The additional filing fees must be paid on or before Wednesday, September 23, 2026.

**If oral argument is timely requested, it will be entertained on
Thursday, September 3, 2026, at 3:30 p.m. in Department 502.**

Explanation:

The uniform fee for filing a discovery motion is \$60. (Gov. Code, § 70617, subd. (a).) Here, although the moving party reserved two motions on the court's calendar, the court notes that, in actuality, there are three motions contained in the moving papers—motions to compel plaintiff Luis Rodriguez's responses to three sets of discovery: form interrogatories, special interrogatories, and document production, respectively. Therefore, the correct total motion fee is \$180 (3 motions x \$60). In the event the additional filing fees are not paid, the court will only rule on two of the motions.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-30-26.
(Judge's initials) (Date)